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File No.: EXP202306262

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by LODEJU, S.L. (*hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated July 31, 2023, and based on the following

FACTS

FIRST: On July 31, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202306262, by virtue of which LODEJU, S.L. was

IMPOSED a fine of €3000 (three thousand euros) for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant in a timely manner as evidenced in the administrative file, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and supplementary to Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00130/2023, the following is recorded:

First. The facts stem from the complaint dated 12/04/21, through which the following was conveyed: “a camera has been placed hidden among the plants with a white casing as indicated in the attached photo. This camera is oriented towards the entrance door of my house (...)” - page No. 1.

“Finally, I want to express that in our case we learned of the existence of these cameras from the same complainant. Because on March 17, 2021, he sent a WhatsApp (...), stating that he has cameras recording 24 hours (Attached is a screenshot of that conversation).” - page No. 1.

Along with the complaint, documentary evidence (Annex I) is provided that proves the presence of the device, as well as images obtained from the device in question.

Second. The main responsible for the installation is identified as Mr. A.A.A., as reflected in the Local Police report (Marbella) dated XX/XX/XX.

Third. It is evidenced that the respondent lacks an informative sign in a visible area indicating that it is a video-monitored area, stating the “data controller” or the purpose of capturing the images.

Fourth. It is evidenced that there are video surveillance devices affecting a public area without justified cause, exercising control reserved for the State Security Forces, obtaining images of public space where various tables have been placed adjacent to the establishment ***ESTABLISHMENT.1.

THIRD: The appellant submitted a reconsideration appeal on August 30, 2023, to this Spanish Agency for Data Protection, basing it fundamentally on the following points:

Infringement of Article 64 of Law 39/2015 (October 1).

Article 64.1 of the LPACAP establishes that the initiation agreement shall be communicated to the interested parties, understanding in any case as such the accused (respondent), and in the present procedure, this communication of the agreement of March 31, 2023, by which the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings, has not occurred, resulting in a flagrant defenselessness of the respondent, since they have not been able to exercise their right to argue what is appropriate in their defense, nor propose the relevant evidence and finally argue and present the documents and justifications (...)

Infringement due to improper application of Article 5.1 c) GDPR.

The security camera located inside the restaurant establishment EI ***ESTABLISHMENT.1, placed by the security company Securitas Direct, does not invade public space, covering only the interior area of the premises. The facts related in the resolution and complaint that motivated the present file are currently non-existent, as well as those recorded in the inspection report of the Local Police of Marbella. The image capture devices reflected in said report do not exist.

Infringement due to improper application of Article 13 GDPR. As already stated, the appellant company has all the informative signage in its establishment according to regulations, placed by the contracted security company in February 2023. - In short, Lodeju S.L. does not have security cameras oriented towards the public transit area and moreover, the customers of ***ESTABLISHMENT.1 are duly informed of the presence of surveillance cameras through various informative signs.

REQUESTS that this document be considered presented, that it be accepted, joined to the procedure in which I appear, for the filing of a RECONSIDERATION APPEAL against the resolution of the sanctioning procedure of July 31, 2023, and that, consequently, it be agreed to uphold the same, rendering said resolution ineffective and agreeing to annul the resolution or, in its case, render the fine imposed on LODEJU S.L. ineffective for not having committed the infringements recorded in the contested resolution, as it is just that I request in Marbella for Madrid on August 30, 2023.

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LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

In this case, we proceed to examine the document qualified as a Recurso de Reposición (Appeal for Reinstatement) through which the annulment of the Resolution of this agency dated 31/07/23 is succinctly requested.

Upon consulting the database of this Agency, the aforementioned act is recorded as notified by dual means electronically and by certified postal notification from the Official Postal Service on 17/08/23. Before addressing the substance of the matter, it is worth recalling that a prior procedure PS/00393/2021 was processed against the respondent for the same facts, with the respondent being aware of the actions of this Agency.

The aforementioned procedure was subject to , being restarted as the statute of limitations for the infringements prescribed in the framework of PS/00130/2023 did not occur.

Upon consulting the database of this Agency, the Agreement to Initiate PS/00130/2023 is recorded as notified on 17/04/23, as certified by the Official Postal and Telegraph Service in the documentation included in the file, with the identity and signature of the recipient recorded at the address associated with the respondent entity.

Despite the absence of a response, a was transferred, recorded as “notified” at the address associated with the respondent on 06/07/23, as certified by the Official Postal and Telegraph Service.

Finally, as indicated, the Resolution of the Director of this agency was subject to dual notification at the only unchanging physical address throughout the procedure: ***ADDRESS.1.

Based on the above, it is appropriate to dismiss the request of the appellant considering that any type of defenselessness has not occurred, as various documents have been sent in a timely manner by this Agency and there have been ample opportunities to clarify the legality of the system.

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Furthermore, it is worth noting that two procedures have been processed by this agency in relation to the facts presented—PS/00393/2021 and PS/00130/2023—without the respondent undertaking the

minimum corrective action regarding the exposed irregularities or showing a proactive attitude in adopting the necessary measures to adjust the video surveillance system to current legality. Finally, this agency requested the attentive collaboration of the Local Security Forces, whose report is associated with the file, where they went to the scene, conducting the appropriate inquiries and even maintaining timely dialogue with the owner(s) of the establishment.

It is also noted that despite being fully aware of the initial investigation actions or even the processing of a prior procedure, the respondent did not proceed to facilitate notification to this Agency, showing, as argued, a total passivity, only interrupted at the moment of the imposition of administrative sanctions.

Article 14.2 of Law 39/2015 (LPAC) provides as follows:

"2. In any case, the following subjects shall be obliged to communicate electronically with Public Administrations for the completion of any procedure of an administrative process: a) Legal entities. (* the bold text belongs to this Agency).

III

Regarding the "facts" subject to sanction, it is worth recalling that the appellant was the subject of a complaint for the installation of a video surveillance camera system, without the proper informative signage.

My house borders to the right and across the street with said ***ESTABLISHMENT.1, whose owner A.A.A. has placed a camera hidden among the plants with a white casing as indicated in the attached photo. This camera is oriented towards the entrance door of my house. Since it is the only access door we have to our house, we are never out of the recordings of this camera—document no. 1.

From the Local Police Headquarters, at the request of this Agency, the presence of a camera on the exterior facade capturing the width of the public sidewalk is confirmed, with the purpose of monitoring the tables installed at the front of the establishment owned by them.

Likewise, the presence of a non-compliant sign, not adjusted to current regulations, is confirmed, lacking, on the other hand, any form(s) available to customers who might request it.

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legality, demonstrating that they meet all the requirements demanded by the applicable regulations.

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The installation of this type of devices must have the required informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be oriented towards the private property, avoiding intimidation of nearby homes and/or public spaces with these types of devices.

Under no circumstances may the cameras record images of the public road or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps.

It is reminded that capturing images of the public sidewalk is prohibited for individuals, as this is a responsibility of the State Security Forces and Corps, and the presence of such images cannot be justified by the fact of having outdoor tables at the establishment they manage, controlling not only their customers but also passersby and neighboring residents, with the logical processing of their personal data.

"As a general rule, capturing images for security purposes of the public road must be carried out by the State Security Forces and Corps. Since it is their responsibility to prevent criminal acts and ensure safety on the aforementioned public road, in accordance with the provisions of Organic Law 4/1997, of August 4, and its implementing regulations."

Examining the contract signed by the appellant with the security company Securitas Direct—in section J) Video Surveillance Systems it states:

It consists of the installation of one or more video surveillance cameras, both indoor and outdoor. The

installation may include Arlo cameras and/or Verisure cameras, both with different functionalities. Unless there is an error or omission, the images obtained in relation to the installed devices have not been provided, allowing according to the attached contract "the client can view in real-time and record the images captured by the Verisure camera from their PC (...)".

Article 118, section 2 of Law 39/2015 (LPAC) states:

"Facts, documents, or allegations of the appellant will not be taken into account in the resolution of the appeals when they could have been submitted during the allegations phase but were not. The practice of evidence cannot be requested when its lack of execution in the procedure in which the contested resolution was issued is not attributable to the interested party."

Therefore, at the time of the current appeal, the appellant has not made any clarification regarding the recording device in question, which allowed the capture of public space located in the front area of the establishment, nor is it clear what is captured or not with the camera system in question, as no screenshot of the corresponding monitor with date and time has been provided.

IV

Regarding the presence of the informative sign, it is not until this appeal document that the respondent states the presence of an informative sign, attaching as evidence (Doc. 1-3) a photograph of the Securitas Direct sign where it reads "with notice to the Police."

The mentioned sign is not the one required in these cases, as it only indicates the installing company, lacking the identification of the responsible party for the processing or the way to exercise rights under the current GDPR.

The second sign is a model that is acquired through a web platform as a deterrent sign to intimidate with a "notice to Police."

Regarding the third sign installed at the entrance of the establishment, the provided photograph is taken from such a distance that the essential content cannot be read.

Furthermore, it is reminded that a copy of the form(s) duly completed, in accordance with the current regulations, must be made available to the clients of the establishment for examination by this Agency. Thus, from the set of evidence provided, it cannot be inferred that the establishment complies with all the requirements to properly inform that it is a video-surveillance area, nor is the exercise of rights facilitated to the clients of the establishment in question, therefore it is appropriate to confirm the proposed sanction.

Finally, the efforts of this Agency to control the legality of the described situation have been extensively outlined, as well as the serious negligence of the respondent, as being aware of the described situation, they have not taken the minimum actions to inform this Agency of the necessary evidence to prove the legality of the system.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by LODEJU, S.L. against the resolution of this Spanish Agency for Data Protection issued on July 31, 2023, in file EXP202306262.

SECOND: TO NOTIFY this resolution to LODEJU, S.L.

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THIRD: To inform the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the Bank (...) or, otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of

the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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